

FIBA SAFEGUARDING POLICY

(in force as of 2 December 2022)

1. INTRODUCTION

In 2016, the International Olympic Committee (“IOC”) issued “The IOC Consensus Statement: harassment and abuse (non-accidental violence in sport).” In such statement it was recognised that “[s]port has long been recognised as a major contributor to positive health and well-being for participants. Nonetheless, the risk of sports-related accidental injury is widely acknowledged, especially for elite athletes, resulting in the evolution of a sophisticated research and practice community to mitigate this risk. Less well-recognised is the potential negative influence on athlete health and well-being if his/her integrity is challenged by non-accidental violence or maltreatment through harassment and abuse. All forms of harassment and abuse breach human rights and may constitute a criminal offence. Therefore, there is a legal and moral duty of care incumbent on those who organise sport, to ensure that risks of non-accidental violence are identified and mitigated.”

Accordingly, all stakeholders in sport have the responsibility to adopt general principles for safe sport. This responsibility requires the implementation and monitoring of procedures to ensure the conditions for a safe sport, having as a priority the right to be treated with respect and protected from non-accidental violence.

FIBA firmly believes that everyone has the right to participate in basketball in an environment that is safe and enjoyable. Equality and diversity are at the heart of FIBA’s values. Thus, FIBA is committed to establishing and implementing policies that safeguard the welfare of Participants, which includes non-discrimination and the prevention of harassment and abuse.

This FIBA Safeguarding Policy (the Policy) aims to ensure that basketball is a safe, positive, and enjoyable experience for all persons involved, regardless of their age, gender, sexual orientation, ethnicity and social background, religion, and level of ability or disability.

FIBA has a zero-tolerance stance towards harassment, discrimination, or abuse of any kind. Accordingly, FIBA’s commitment to a safe basketball environment is enshrined in FIBA’s General Statutes and Internal Regulations and it is under such principles that this FIBA Safeguarding Policy is enacted.

-Article 1.3, FIBA General Statutes-

FIBA maintains absolute political and religious neutrality and does not tolerate any form of discrimination.

-Article 4, FIBA General Statutes-

The mission of FIBA is to promote the sport of basketball throughout the world and to lead the basketball movement as recognised by the International Olympic Committee. FIBA’s role is to:

...

- c. Ensure that basketball throughout the world is carried on in a manner that allows the sport to be competitive and fair;*
- d. Formulate or adopt and implement appropriate policies in relation to discrimination, sexual harassment, equal opportunity, equity, drugs and doping, health, safety, infectious diseases, and such other matters as arise from time to time as issues to be addressed in basketball;*

- ...
n. Have regard to the public interest in its operations;
- ...
p. Undertake and/or do all such things or activities as are necessary, incidental or conducive to the advancement of its mission and role.

-Article 1-118, FIBA Internal Regulations-

Basketball Parties shall respect the right of all individuals to dignity and to being treated with respect.

-Article 1-120, FIBA Internal Regulations-

Basketball Parties shall not discriminate on the basis of race, gender, ethnic origin, religion, philosophical or political opinion, marital status, or any other grounds.

Also, Book 1 of FIBA Internal Regulations (Code of Ethics and Integrity: Safeguarding) establishes the basis under which this Policy will operate, enshrining FIBA's commitment towards Vulnerable Groups within basketball.

2. DEFINITIONS

Abuse: Treating someone with violence, disrespect, cruelty, harm, or force. Abuse can take many forms, ranging from disrespect to causing someone physical or mental pain. It can occur during basketball-related activities as well as in someone's home, school, hospital or a public place. Often the people who commit abuse are taking advantage of a special relationship. They may be a family member, friend, or person with whom there is a relationship of authority or trust (e.g., a coach, a team doctor, a manager, a referee, an agent). Abuse can be classified into 4 categories: physical, emotional, sexual, and neglect.

Basketball Competition: An Official Basketball Competition or any national-level competition recognised by a National Member Federation.

Basketball Official: Any Official of FIBA (or a "FIBA Official"), a FIBA Division, a National Member Federation, or a Local Organising Committee, including without limitation the following:

- candidates or nominees for elected or appointed positions with FIBA, a FIBA Division or National Member Federations;
- members of the Central Board;
- members of the Executive Committee;
- members of the Zone Boards;
- members of the Secretariat;
- members of the commissions, committees, working groups or taskforces or similar bodies appointed by FIBA, FIBA Division, or a National Member Federation for any purpose;
- employees of FIBA or a FIBA Division at the level of Director or Head of such Division;
- members of the FIBA Ethics Panel;
- members of FIBA judicial bodies; and
- the FIBA Integrity Officer.

Basketball Party: Persons or groups that are subject to the jurisdiction and disciplinary powers of FIBA under the terms established in Chapters 5 and 6 of the FIBA Internal regulations and that are bound by, recognise, and deemed to be familiar with the General

Statutes, the Internal Regulations, and other rules and regulations, policies, or decisions of FIBA

- FIBA Divisions;
- National Member Federations;
- Any association, club, and other organisations (including leagues) that are members (directly or indirectly) or part of the National Member Federations, or of FIBA or a FIBA Division;
- Persons employed by, or engaged in activities on behalf of (whether paid or unpaid), licensed by, or having a direct or indirect affiliation to FIBA or to any of the entities in letters a., b., and c., above;
- Basketball Officials;
- Participants;
- Spectators;
- Any Person, city or state and the like bidding for the right to conduct events/Competitions of FIBA, including the Local Organising Committee formed to run such events; and
- Any other Person bound by the General Statutes and Internal Regulations of FIBA.

Bullying: Harassment consisting in repeated behaviour intended to intimidate or upset someone and/or make them feel uncomfortable or unsafe, for example, name calling, exclusion or isolation, spreading rumours, embarrassing someone in public or in front of their peers, threatening to cause Harm, physically hurting someone, or damaging their possessions. Bullying may be a manifestation of Discrimination. When technology or social media is used to engage in this type of conduct, it is often referred to as cyberbullying.

Discrimination: Unequal treatment of an individual based on their personal characteristics, such as: age, disability, gender, marriage or civil partnership, pregnancy or maternity, race, religion or belief, sex, sexual or gender orientation, or cultural preferences. Discriminatory conduct includes insulting language, Harassment, ill-treatment, disparate treatment, or adverse impact on employment or playing opportunities triggered by the abovementioned personal characteristics of the individual. Discrimination can be the triggering factor or motivator for causing Harm to individuals, particularly Young Players and Vulnerable Groups and manifests itself in acts of Harassment and Abuse.

Emotional Abuse: Any act or treatment that may cause emotional Harm and undermines a person's sense of well-being, including persistent criticism, denigration or putting unrealistic expectations on Vulnerable Groups, isolation, verbal assault, humiliation, blaming, controlling, intimidation or use of threats.

FIBA Division: All divisions of FIBA, including without limitation all Zones, Zone bodies, Regional Offices, Sub-zones, Sub-sub-zones, Commissions, etc.

Harassment: Conduct that is usually ongoing and that can also be used to describe Abuse, insults, or other actions that cause Harm to another individual on a regular basis. Harassment is an umbrella term used to describe a variety of tormenting behaviour, and as such it can be physical, emotional, or of sexual nature.

Harm: Any ill treatment (including Harassment, Discrimination, and Abuse) which adversely affects a person's physical or mental well-being, property, rights, or interests. Harm can occur in many forms and can range in gravity. Not all Harm suffered by a Participant will be related to a basketball organisation or be perpetrated by someone within basketball. Nonetheless, it is the obligation of Basketball Parties to report any action that they are aware of and that may cause Harm to a Young Player, to Vulnerable Groups, or Participants.

Hazing: Form of Harassment that occurs in the context of a ritual or initiation activity, action, or situation, with or without consent, which recklessly, intentionally or unintentionally endangers the physical or emotional well-being of an individual, particularly Young Players of Vulnerable Groups.

Neglect: Ongoing failure to meet the basic needs of individuals, particularly Young Players and Vulnerable Groups. Neglect may involve the failure to provide adequate food, shelter including exclusion from home or abandonment, failure to protect from physical and emotional harm or danger, or failure to ensure access to appropriate medical care or treatment. It may also include neglect of, or unresponsiveness to, basic emotional needs, as a result of the structure, policies, processes or practices within an organisation.

Official: Any Person that holds an office, is elected or appointed to a position, or any Person appointed in an official capacity or that otherwise represents an entity (legal or otherwise).

Official Basketball Competitions: The following types of competitions as defined in Book 2 of the FIBA Internal Regulations:

- FIBA National team Competitions
- FIBA Club Competitions
- FIBA 3x3 Competitions
- FIBA eSport Competitions
- FIBA-Recognised Competitions

Official Game: Any game of an Official Basketball Competition.

Participants: Any Person playing a direct or indirect role in basketball, including without limitation the following:

- players and their agents or representatives;
- player support personnel (e.g. coaches, assistant coaches, doctors, physiotherapists, etc.);
- any other person included on a National Member Federation's team delegation roster;
- commissioners;
- game officials (e.g., referees, Technical Delegates, Commissioners, Table Officials, etc.);
- followers with special responsibilities (e.g., managers, statisticians, interpreters, mascots, etc.);
- Persons employed by, or engaged in activities on behalf of (whether paid or unpaid), or having a direct or indirect affiliation to FIBA, a FIBA Division or a Local Organising Committee; and
- any other person accredited for or in attendance at an Official Game.

Person: Any natural persons, or an organization or other entity, such as bodies of a corporate or unincorporated associations or partnerships (whether or not any of them have separate legal personality).

Physical Abuse: Any deliberate act causing injury or trauma to another person. This includes, without limitation, hitting, slapping, pushing, kicking, burning, giving a person medicine that they do not need and/or that may cause them Harm, including the application of inappropriate restraint measures.

Sexual Abuse: Any act resulting in the exploitation of an individual, whether with their consent or not, for the purpose of sexual or erotic gratification. Sexual Abuse may be perpetrated by

an individual that is older than the victim or intellectually, emotionally, physically, or sexually more mature than the victim. Sexual Abuse includes non-contact activities, such as indecent exposure, involving Young Players or Vulnerable Groups in witnessing sexual acts, looking at sexual images/pornography or grooming them in preparation for abuse (including via the internet). Even if an individual has legally reached the age of sexual consent in their jurisdiction, it is unacceptable for anyone to abuse their relationship of trust for sexual gratification.

Vulnerable Groups: Individuals who are vulnerable or at risk of abuse or neglect due to their mental or physical disability, their level of ability, their age, ethnicity or social background, religion, gender, sexual orientation, illness, or that are otherwise in the need for care, protection, or support.

Young Player: A player who has not yet reached their 18th birthday.

3. SCOPE

3.1 Purposes

- 3.1.1 This Policy sets out the requirements for FIBA to fulfil its duty and obligations in protecting particularly Vulnerable Groups. This Policy should also be used as a guideline for National Member Federations to establish their own safeguarding policy. This Policy aims to:
- a) set out FIBA's commitment in protecting Vulnerable Groups in basketball;
 - b) ensure that Basketball Parties exercise their duty of care to safeguarding Vulnerable Groups in basketball;
 - c) identify the legal framework for safeguarding the wellbeing of all Participants of basketball;
 - d) establish the basis and guidelines for implementation of educational programs to train Basketball Parties in safeguarding principles and protection of Vulnerable Groups;
 - e) define the standards of the duty of notification and report in case a Basketball Party witnesses or has information of a safeguarding issue;
 - f) set out how Harassment, Discrimination or Abuse can be reported;
 - g) establish standards of behaviour that all Basketball Parties shall adhere to;
 - h) identify the risks associated in the protection of Vulnerable Groups;
 - i) identify ways to mitigate or reduce potential risks in safeguarding Vulnerable Groups in basketball; and
 - j) identify the roles and responsibilities of Basketball Parties in addressing safeguarding violations.
- 3.1.2 FIBA will ensure that the principles enshrined in this Policy are considered and addressed in the organisation of Official Basketball Competitions (see Article 2-2 of FIBA Internal Regulations), in the grant of hosting rights, or any activity in partnership with a third party in which the participation of Vulnerable Groups is expected.
- 3.1.3 All FIBA Divisions must familiarise themselves with the contents of this Policy and follow its guidelines.

3.2 The FOUR Pillars of FIBA's Safeguarding Policy

- 3.2.1 Zero Tolerance: FIBA will not tolerate any form of Harassment, Discrimination, or Abuse and will take all necessary measures to implement this Policy. Accordingly, all Basketball Parties must respect and promote the rights of basketball Participants and adhere to this Policy.
- 3.2.2 Education: FIBA expects Basketball Parties to familiarise themselves with the main concepts involving safeguarding, including the core components of actions that may cause Harm and the key indicators to identify such actions. FIBA also expects that all National Member Federations will have the education and tools they need to develop and implement their own safeguarding policies and training materials.
- 3.2.3 Identifying Violations and Duty to Report: Any suspected violation of this Policy or the FIBA Internal Regulations must be reported immediately through the appropriate reporting channels. The successful implementation of this Policy depends on an individual and shared responsibility of all Basketball Parties. Every effort will be made to ensure confidentiality throughout the entire investigative and disciplinary process.
- 3.2.4 Risk Management: Risks need to be identified and minimised throughout all stages of basketball activities (e.g., recruiting, training, basketball competitions).

3.3 Declaration

- 3.3.1 FIBA does not tolerate any form of Harassment, Discrimination, or Abuse (collectively referred as "Harm") against any Participant or Person. This zero-tolerance declaration means that FIBA will take the necessary measures to implement its safeguarding Policy. It also means that all Basketball Parties are expected to respect, adhere to, and promote the principles enshrined in this Policy.
- 3.3.2 In enforcing this Policy, FIBA will actively pursue disciplinary proceedings and impose the corresponding sanctions against any Basketball Party who transgresses this Policy or the relevant safeguarding articles of the FIBA Internal Regulations.

4. GUIDELINES

4.1 Key Indicators of Harm

- 4.1.1 Indicators of Harm may be physical or behavioural. Indicators do not prove conclusively that an individual has been the subject of Harm. However, the indicators do alert to the fact that an individual, particularly a Young Player or a member of a Vulnerable Group may require help or protection. These indicators include, without limitation:
 - a) a victim talks about acts of harassment or abuse;
 - b) a friend, family member or somebody close to the victim says something that causes concern;
 - c) concerning injuries or physical signs visible on the victim; and

- d) awkward or concerning behaviour of the victim or of a potential perpetrator that alerts that something may be wrong.

4.2 Key Indicators of Abuse

- 4.2.1 The following indicators may suggest that an individual is the victim of physical abuse:
 - a) injuries not consistent with the explanation given for them;
 - b) injuries that occur to the body in places which are not normally exposed to falls or rough games;
 - c) injuries that seem not to have received medical attention;
 - d) reluctance to change for, or participate in, games or practice;
 - e) bruises, bites, burns and fractures that do not have an accidental explanation;
 - f) inconsistent accounts for the cause of the injury;
 - g) signs of restraint;
 - h) damage to equipment and personal effects of the individual;
 - i) use of medications (e.g. excessive use or lack of needed use); and
 - j) withdrawal or lack of engagement with peers or other persons.
- 4.2.2 The following behavioural indicators may suggest that an individual is the victim of sexual abuse:
 - a) any allegations made concerning sexual abuse;
 - b) a Young Player's excessive preoccupation with sexual matters or inappropriate knowledge of adult sexual behaviour inconsistent for their age;
 - c) a Young Player engages in sexual play inappropriate for their age;
 - d) a Young Player is sexually provocative or seductive with adults;
 - e) other inappropriate sexual behaviour;
 - f) consistent use of inappropriate sexual language;
 - g) reluctance of the individual to be touched; and
 - h) withdrawal or lack of engagement with peers or other persons.
- 4.2.3 The following physical or external indicators may suggest that an individual is the victim of sexual abuse:
 - a) pregnancy in someone unable to consent to sexual contact;
 - b) damage, constant pain or itching in the genital area or difficulty walking or sitting;
 - c) repeated urinary infections or unexplained stomach pains;
 - d) infections or sexually transmitted diseases;
 - e) torn, stained or bloody underwear;
 - f) fear and withdrawal from relationships;
 - g) inappropriate bed-sharing arrangements at home;
 - h) severe sleep disturbances with fears, phobias, vivid dreams or nightmares which sometimes have overt or veiled sexual connotations; and
 - i) changes in appearance and eating disorders such as anorexia or bulimia.
- 4.2.4 The following indicators may suggest that an individual is the victim of emotional abuse:
 - a) depression, aggression, extreme anxiety, changes or regression in mood or behaviour, particularly where a Young Player withdraws or becomes clingy;
 - b) compulsive behaviour, obsessions or phobias;
 - c) sudden underachievement or lack of concentration;
 - d) seeking adult attention and not mixing well with other Young Players of their same age;
 - e) sleep or speech disorders;
 - f) negative statements about self.

- g) extreme shyness or passivity and being withdrawn;
- h) running away, stealing, lying and cruelty to others;
- i) too eager to do everything they are asked;
- j) excessive general anxiety or heightened anxiety around specific persons; and
- k) inexplicable withdrawal or lack of engagement with peers or other persons.

- 4.2.5 The following indicators may suggest that an individual is the victim of neglect:
- a) dirty skin, body smells, unwashed, uncombed hair, and untreated lice;
 - b) clothing that is dirty, too big or small, or inappropriate for weather conditions;
 - c) frequently left unsupervised or alone;
 - d) recurrent or untreated injuries;
 - e) frequent diarrhea;
 - f) frequent tiredness;
 - g) untreated illnesses, infected cuts, or physical complaints which the carer does not respond to;
 - h) frequently hungry;
 - i) overeating junk food;
 - j) sudden behaviour changes; and
 - k) withdrawal or lack of engagement with peers or other persons.

4.3 Reporting Mechanisms and Procedure

- 4.3.1 If an individual (particularly a Young Player or a member of a Vulnerable Group) discloses that they have suffered Harm, such allegation must be taken very seriously. It is important that any disclosure is dealt with appropriately and that the immediate needs of the individual are prioritised.
- 4.3.2 It's normal to feel overwhelmed and confused in this situation. Abuse and other Harm are difficult subjects that can be hard to accept and even harder to talk about. Children and adults at risk who are abused are often threatened by the perpetrators to keep the abuse a secret. Thus, telling someone else takes a great amount of courage.
- 4.3.3 Vulnerable Groups will have to deal with a lot of issues, including the fear that no one will believe them. So, care must be taken to remain calm and to show support throughout the disclosure phase.
- 4.3.4 Safeguarding issues, as well as any violations of this Policy or the FIBA IR should be reported through the following channels:
- a) safeguarding@fiba.basketball
 - b) <https://www.fiba.basketball/integrity> (allows for anonymous reporting)
- 4.3.5 The protection and safeguarding of members of Vulnerable Groups is the main goal of this Policy. Any action that may constitute a criminal act should also be reported to relevant national authorities (e.g., police, social services).
- 4.3.6 The following steps (**the 4 Rs**) will help in the process of handling information given by victims and lessen the risk of causing more trauma to the victim or compromising any investigation during the disclosure phase.
- a) **Receive**
 - 1) Listen to what is being said without displaying shock or disbelief. A common reaction to news as unpleasant and shocking as Abuse is denial. However, if denial, shock or disgust is displayed, the victim may be afraid to continue and will shut down.

- 2) Accept what is being said without judgement.
- 3) Take it seriously.

b) **Reassure**

- 1) Reassure the victim, but only so far as is honest and reliable.
- 2) Don't make promises that can't be kept.
- 3) Reassure the victim (particularly a Young Player) that they did nothing wrong and that what they have said has been taken seriously.
- 4) Don't promise confidentiality – never agree to keep the information as a secret. There is a duty to report any concerns.
- 5) Tell the victim that this will need to be reported to other persons, but only those whose job it is to protect them.
- 6) Acknowledge how difficult it must have been to talk. It takes a lot for a child or adult at risk to come forward about abuse.

c) **React**

- 1) Listen quietly, carefully and patiently.
- 2) Do not assume anything – don't speculate or jump to conclusions.
- 3) Do not investigate, interrogate or decide if the victim is telling the truth.
- 4) Don't do anything that may jeopardise an investigation.
- 5) Let the victim explain to you in their own words what happened.
- 6) Don't ask leading questions (e.g., "Isn't it true that..."). Do ask open questions (e.g., "Is there anything else that you want to tell me?").
- 7) Communicate in a way that is appropriate to their age (particularly with Young Players), understanding and preference.
- 8) Explain what will be done next and to whom will the information be told.
- 9) Report the situation through the FIBA reporting channels or the person responsible for Safeguarding in your organisation (i.e., National Federation, league, club).
- 10) Do not discuss the case with anyone except as necessary to protect the victim.

d) **Record**

- 1) Make some very brief notes at the time and write them up in detail as soon as possible.
- 2) Do not destroy your original notes in case they are required during the investigation.
- 3) Record the date, time, place, words used by the victim, and how the victim appeared (be specific).
- 4) Record the actual words used, including any swear words or slang.
- 5) Record statements and observable things, not interpretations or assumptions (keep it factual).
- 6) **Under no circumstance undertake own investigation.**

4.3.6 **Confidentiality**: Confidentiality is an important principle that enables people to feel safe in sharing their concerns and asking for help. However, the right to confidentiality is not absolute. Sharing relevant information with the right people at the right time is a vital component of good safeguarding practices. Accordingly, all reports made to FIBA will be treated with the utmost confidentiality but shared as needed with sporting bodies or public authorities in order to fulfil the purposes of this Policy. FIBA will abide by all data protection laws and maintain strict confidentiality of:

- a) data collected (in writing or electronically) relating to victims, particularly Young Players and Vulnerable Groups; and
- b) information and documentation relating to safeguarding allegations, concerns, and incidents.

5. RISK MANAGEMENT AND MITIGATION

5.1 FIBA Activities

- 5.1.1 As part of the efforts to tackle and prevent safeguarding issues FIBA aims to:
- a) require hosts of FIBA Official Basketball Competitions and event organisers to assume safeguarding obligations, depending on the context and the target audience of the event;
 - b) implement safeguarding protocols and appoint safeguarding officers in specific FIBA Official Basketball Competitions;
 - c) require potential partners that organise activities targeted to Young Players or other Vulnerable Groups, to assume safeguarding obligations; and
 - d) engage in educational activities to raise awareness of the need to implement safeguarding measures and training workshops to empower Basketball Parties in the implementation of safeguarding policies.

5.2 FIBA Integrity Officer

- 5.2.1 The FIBA Integrity Officer is an independent official appointed by the FIBA Central Board that supports *“FIBA in the investigation of any potential violation brought to his attention. For the purposes of such review, the Integrity Officer may upon FIBA’s request or approval, conduct specific investigations and collaborate with relevant public authorities.”* See Article 1-201 of FIBA IR.
- 5.2.2 As per Chapter 7, Book 1 of the FIBA IR, the role of the Integrity Officer is to perform the following functions:
- a) Investigate any alleged breaches that are referred by FIBA, including those related to safeguarding issues;
 - b) Ensure all investigations conducted on behalf of FIBA are reasonable, proportionate, and in compliance with all applicable laws, regulations, and budgeting guidelines of FIBA;
 - c) Keep confidential any information obtained through reports on or investigations into potential integrity-related violations;
 - d) If necessary, propose to FIBA specific expertise that may be needed in support of the investigation; and
 - e) Provide an independent report to FIBA following an investigation.
- 5.2.3 The FIBA Integrity Officer will investigate any referred matter based on the report received. Investigations by the FIBA Integrity Officer may involve, without limitation:
- a) direct contact with the alleged victim;
 - b) interviews with witnesses or the alleged perpetrator(s);
 - c) examination of documents and reports; and
 - d) contact with public agencies (e.g., police, social work agencies, sports ministries) or other sports bodies (e.g., National Olympic Committees, National Member Federations).
- 5.2.4 Depending on the recommendations of the FIBA Integrity Officer included in the independent report, internal disciplinary proceedings, in accordance with FIBA Internal Regulations may be initiated. In cases where there is evidence of a potential crime or if the matter is unrelated to basketball (i.e., domestic violence), FIBA shall refer the matter to the relevant public authorities.

5.3 Disciplinary Procedures

- 5.3.1 As part of the zero-tolerance Policy adopted herein, FIBA will initiate disciplinary proceedings against any Person who does not fulfil its safeguarding duties (including the duty to report), pursuant to the FIBA Internal Regulations and this Policy.
- 5.3.2 Chapter 6 of Book 1 of the FIBA Internal Regulations outlines the sanctions available to the Disciplinary Panel or the Secretary General in cases of disciplinary violations. Sanctions can be imposed on both organisations and individuals. Sanctions include the imposition of warning and fines, as well as suspension or bans on all FIBA-related activities.
- 5.3.3 Any disciplinary action taken by the FIBA Disciplinary Panel of the Secretary General may be appealed to the FIBA Appeals Panel in accordance with Chapter 7 of Book 1 of the FIBA Internal Regulations, with a further recourse to the Court of Arbitration for Sports.

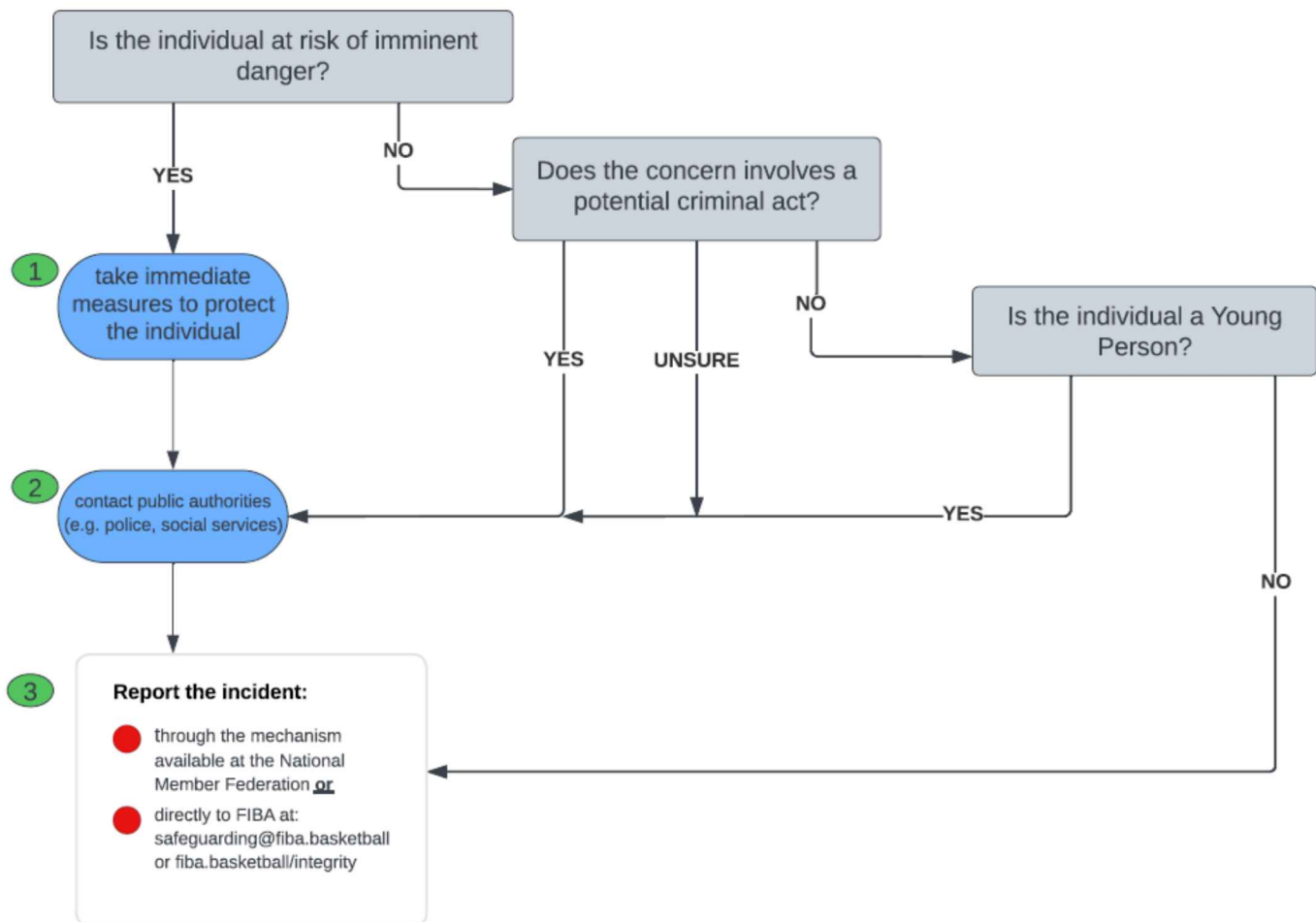
5.4 FIBA Safeguarding Council

- 5.4.1 The FIBA Safeguarding Council acts as an advisory body to FIBA on matters related to safeguarding and protection of Vulnerable Groups. In particular, the FIBA Safeguarding Council has the following duties:
 - a) provide advice on ensuring a safe environment for all FIBA stakeholders, including, but not limited to, players, coaches, officials, fans, administrators, and volunteers;
 - b) study matters relating to the safeguarding of players, especially Young Players, and other FIBA stakeholders;
 - c) review and recommend modifications to the FIBA General Statutes and FIBA Internal Regulations concerning safeguarding matters;
 - d) present proposals for the adoption of a FIBA Safeguarding Policy and amendments thereto; and
 - e) create documents and guidelines that could be used by National Member Federations to guarantee a safe environment in their respective countries.
- 5.4.2 The FIBA Safeguarding Council shall be appointed by FIBA and composed of at least five (5) persons, one who will act as Chairperson. The Chairperson, who will be designated by the FIBA Central Board, shall be an external and independent person from FIBA, with experience in safeguarding matters.

ANNEX 1

How to report any Abuse, Harm, or other violation of this Policy

All behaviour that contravenes the obligations of this Policy should be reported immediately as per section 6.3.4. The protection and safeguarding of members of Vulnerable Groups is the main goal of this Policy. Any action that may constitute a criminal act should also be reported to relevant national authorities (e.g. police, social services) in line with applicable laws.



ANNEX 2

This Safeguarding Report Form is to be used to record information concerning an allegation, suspicion, or disclosure of a potential safeguarding concern. Please use additional pages if necessary. *This form shall be returned to the following address: safeguarding@fiba.basketball*

Name of the person completing this form (YOU):	
Date and time of completing this form:	
Your position or relationship to who your safeguarding concern is about:	
Your telephone number:	
Your address:	
Name(s) of person(s) the safeguarding concern or incident is about:	
Address (if known) of person the safeguarding concern is about:	
Telephone number (if known) of the person the safeguarding concern is about:	
Age and Date of Birth of the person the safeguarding concern is about (if known):	
Date and time of any incident:	
What have you seen or heard?	
Has the alleged victim(s) said anything to you? (do not lead or investigate – just record actual details) – continue on another sheet if required	
Any other relevant information:	
Action taken so far:	
Public Agencies Contacted	
Police - yes/no	Name and contact number: Details of advice received:
Social services - yes/ no	If yes – which: Name and contact number: Details of advice received:
Local authority - yes/no	If yes – which: Name and contact number: Details of advice received:
Other – yes/no	Which: Name and contact number: Details of advice received: